UPSC INDIAN POLITY

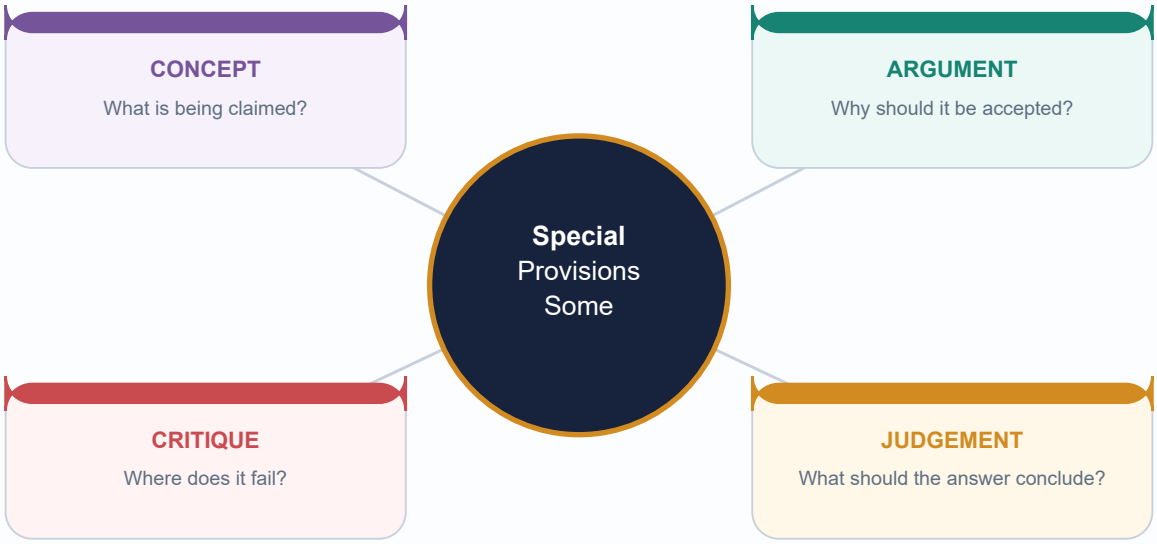
Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Special-Provisions.md + 22_Special-Provisions.md

Learning cards: 18



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Core · **GS Paper:** GS-II + Prelims · **Current through:** 5 September 2026

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Core idea and ownership

GS-II Indian Polity

INTRO & ORIGIN

India uses **asymmetric federalism**: States remain constitutionally equal members of one Union, but Part XXI gives some States tailored safeguards for identity, land, representation, law and order, or regional development. This topic owns Articles **371–371J** and the minimum Article 370/35A position needed to distinguish current law. Fifth/Sixth Schedule machinery remains cross-owned by Scheduled and Tribal Areas.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Core idea and ownership

HIGH

Foundation · Article 371–371J master table · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Article	State(s)	Origin	Exact Core mechanism	Constitutional actor
371	Maharashtra, Gujarat	current State-specific form after the Seventh A mendment/reorganis ation era	separate regional development boards; annual Assembly reports; equitable development funds; technical/vocational and State-service opportunity	President may assign Governor special responsibility
371A	Nagaland	13th Amendment, 1962	Parliamentary law on Naga religious/social practices, customary law/procedure, customary justice, and land/resources does not apply unless Assembly resolves	Assembly consent; Governor has bounded transitional law-order role
371B	Assam	22nd Amendment, 1969	Assembly committee comprising members from specified tribal areas and others named by Presidential order	President constitutes/defines committee
371C	Manipur	27th Amendment, 1971	Hill Areas Committee; Governor responsibility, annual report to President; Union directions possible	President and Governor
371D	Andhra Pradesh, Telangana	32nd Amendment, 1973; adapted by AP Reorganisation Act, 2014	equitable opportunity in public employmen t/education; local areas/cadres through Presidential orders	President
371E	Andhra Pradesh	32nd Amendment, 1973	Parliament may establish a Central University	Parliament
371F	Sikkim	36th Amendment, 1975	integration, representation, existing-law/court continuity, and Governor responsibility for peace/equitable advancement	Parliament/President /Governor as clause specifies

Article	State(s)	Origin	Exact Core mechanism	Constitutional actor
371G	Mizoram	53rd Amendment, 1986	Parliamentary law on Mizo religious/social practices, customary law/procedure, customary justice and land does not apply unless Assembly resolves; Assembly at least 40	Assembly consent

MAINS ANGLE

STUDY LINK
Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Article 371–371J master table

HIGH

Foundation · Article 371–371J master table · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Article	State(s)	Origin	Exact Core mechanism	Constitutional actor
371H	Arunachal Pradesh	55th Amendment, 1986	Governor's bounded law-order responsibility; Assembly at least 30	Governor after ministerial consultation, using individual judgment; President may terminate responsibility
371I	Goa	56th Amendment, 1987	Assembly at least 30	Constitution
371J	Karnataka	98th Amendment, 2012; effective 2013	Kalyana Karnataka development board, equitable funds/opportunity, and proportionate local seats/posts under Presidential order	President assigns Governor responsibility and may specify reservation

MAINS ANGLE

STUDY LINK
Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Article 371–371J master table

HIGH

Foundation · High-value distinctions

GS-II Indian Polity

INTRO & ORIGIN

371A versus 371G: both create subject-specific Assembly-consent shields; Nagaland additionally has resource wording and special Tuensang/law-order arrangements.

Foundation learning layer: concepts → constitutional detail → UPSC application.

HIGH-VALUE DISTINCTIONS: RECALL MAP

High-value distinctions

V

Dimension 1 371A versus 371G: both create subject-specific Assembly-consent shields; Nagaland additionally has resource wording and special Tuensang/law-order arr	**Dimension 2** 371B versus 371C: Assam has a tribal-area Assembly committee; Manipur combines a Hill Areas Committee with Governor reporting and Union-direction arch
Dimension 3 371D status: the constitutional power survives, but the former Andhra Pradesh Administrative Tribunal was abolished by G.S.R. 30(E), 14 January 2020;	**Dimension 4** 371F: not merely a minimum Assembly clause; it is a detailed accession/integration settlement.

STATIC THEORY

- **371B versus 371C:** Assam has a tribal-area Assembly committee; Manipur combines a Hill Areas Committee with Governor reporting and Union-direction architecture.

- **371D status:** the constitutional power survives, but the former Andhra Pradesh Administrative Tribunal was abolished by G.S.R. 30(E), 14 January 2020; do not present that tribunal as currently operating.

- **371F:** not merely a minimum Assembly clause; it is a detailed accession/integration settlement.

- **371J:** Constitution still says Hyderabad-Karnataka; the region is now officially called Kalyana Karnataka.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → High-value distinctions

HIGH

Foundation · Article 370 and Article 35A — current legal minimum

GS-II Indian Polity

NEWS TRIGGER

Article 370 remains printed in Part XXI but was rendered inoperative through the 2019 orders/declaration. Article 35A, inserted through the 1954 Presidential Order, ceased to operate with that constitutional reconfiguration. *In re Article 370* (11 December 2023) upheld the constitutional result, held Article 370 temporary and rejected separate internal sovereignty. It did not finally adjudicate the State-to-UT conversion after the Union assurance on restoration.
Current: Jammu and Kashmir remains a Union Territory with legislature; Ladakh remains a Union Territory without legislature. No Statehood/Sixth Schedule change had been enacted by 5 September 2026.

INTRO & ORIGIN

Exam-ready treatment of Article 370 and Article 35A — current legal minimum.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Article 370 and Article 35A — current legal minimum

HIGH

Foundation · Fifth/Sixth Schedule firewall

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Device	Location	Unit/mechanism
Article 371 family	Part XXI	State-specific clause
Fifth Schedule	Article 244(1), Part X	Scheduled Areas, Governor/TAC/President safeguards
Sixth Schedule	Article 244(2), Part X	autonomous district/regional councils in four north-eastern States

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Fifth/Sixth Schedule firewall

HIGH

Foundation · Fifth/Sixth Schedule firewall

GS-II Indian Polity

INTRO & ORIGIN

Exam line: Indian unity is sustained not by mechanical uniformity but by constitutionally bounded, purpose-specific difference.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Fifth/Sixth Schedule firewall

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Exact ownership: *this topic owns the State-specific asymmetry of Articles 371-371J and the minimum Article 370/35A history required to state current law. Article 369 and Articles 372-392 are classified as other temporary/transitional Part XXI provisions, not silently absorbed into the Article 371 catalogue.* ***Boundary firewall:*** *Article 244 and the Fifth/Sixth Schedules belong to Topic 26; PESA's Panchayat extension belongs to Topic 23; Articles 239-241 and the J&K/Ladakh UT machinery belong to Topic 25; Articles 330 onward concerning certain classes belong to Topic 53.* ***Article 371:*** *the current Maharashtra-Gujarat clause permits a Presidential order assigning the Governor special responsibility for separate development boards, annual Assembly reporting, equitable development expenditure and opportunity in technical education, vocational training and State services.* ***Consent shields:*** *Article 371A, inserted by the Thirteenth Amendment, 1962, protects specified Naga practices, customary law/justice and land/resources unless the Nagaland Assembly resolves otherwise. Article 371G, inserted by the Fifty-third Amendment, 1986, supplies the parallel but textually distinct Mizoram shield and a forty-member Assembly minimum.* ***Committee models:*** *Article 371B, Twenty-second Amendment, 1969, authorises a Presidential order for an Assam Assembly committee. Article 371C, Twenty-seventh Amendment, 1971, adds Manipur's Hill Areas Committee, Governor report/special responsibility and possible Union directions. Neither is a Sixth Schedule council.* ***Opportunity and integration:*** *Articles 371D/E came through the Thirty-second Amendment, 1973; Section 97 of the Andhra Pradesh Reorganisation Act, 2014 adapted Article 371D for Telangana. Article 371F is the Thirty-sixth Amendment, 1975 Sikkim settlement; Article 371I, Fifty-sixth Amendment, 1987, only fixes Goa's Assembly minimum.* ***Law-and-order and development:*** *Article 371H, Fifty-fifth Amendment, 1986, gives Arunachal Pradesh's Governor bounded law-and-order responsibility after ministerial consultation and subject to Presidential termination. Article 371J, Ninety-eighth Amendment, 2012, effective 2013, concerns the constitutionally named Hyderabad-Karnataka region, now officially Kalyana Karnataka.* ***Article 370 current rule:*** *C.O. 272 of 5 August 2019 and C.O. 273 of 6 August 2019 produced the present inoperative position; Article 35A ceased with the 1954 Order's supersession. In re Article 370, 2023 INSC 1058, upheld the constitutional result while treating the Article 367 substitution as invalid to the stated extent and unnecessary to the outcome.* ***Reorganisation limit:*** *the Court did not finally adjudicate J&K's conversion from State to Union Territory after recording the Union's restoration assurance; it upheld Ladakh's creation as a Union Territory. J&K remains a UT with an elected legislature and Ladakh a UT without one on 5 September 2026.* ***Four-ledger/PYQ control:*** *Article 371 actor/state/amendment traps and routed Article 370/asymmetric-federalism demands were retained. Full Scheduled/Tribal Areas doctrine is deliberately deferred to Topic 26 rather than duplicated.*

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 37 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/Special-Provisions.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 37 (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/Special-Provisions.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — ARTICLE 370 (former special status of J&K) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Art 370 (Part XXI, "Temporary, Transitional & Special Provisions")** gave J&K a special autonomous status — own constitution, separate flag, and Union laws applied only with the state's concurrence (via **Art 35A**, added by a 1954 Presidential Order, on permanent residents/property). □ □ **Abrogation (5 Aug 2019):** Presidential Orders (C.O. 272/273) + Parliament resolutions rendered Art 370 inoperative; the **J&K Reorganisation Act 2019** split the state into **two UTs — J&K (with legislature) & Ladakh (without)** w.e.f. **31 Oct 2019**. □ □□ **SC verdict — *In Re Article 370* (11 Dec 2023):** unanimously **upheld** the abrogation; held Art 370 was **temporary** and J&K retained **no internal sovereignty**; directed **Assembly elections by Sept 2024** and recorded the Union's assurance that statehood would be restored **"at the earliest"**, without fixing a judicial statehood deadline. □ □ **Status 28 Aug 2026:** Assembly elections were held Sept–Oct 2024 (90-member Assembly constituted); statehood has not been restored.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Art 370 (Part XXI, "Temporary, Transitional & Special Provisions") gave J&K a special autonomous status — own constitution, separate flag, and Union laws applied only with the state's concurrence (via **Art 35A**, added by a 1954 Presidential Order, on permanent residents/property). □ **Abrogation (5 Aug 2019):** Presidential Orders (C.O. 272/273) + Parliament resolutions rendered Art 370 inoperative; the **J&K Reorganisation Act 2019** split the state into **two UTs — J&K (with legislature) & Ladakh (without)** w.e.f. **31 Oct 2019**. □ □□ **SC verdict — *In Re Article 370* (11 Dec 2023):** unanimously **upheld** the abrogation; held Art 370 was **temporary** and J&K retained **no internal sovereignty**; directed **Assembly elections by Sept 2024** and recorded the Union's assurance that statehood would be restored **"at the earliest"**, without fixing a judicial statehood deadline. □ **Status 28 Aug 2026:** Assembly elections were held Sept–Oct 2024 (90-member Assembly constituted); statehood has not been restored.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → PART A — ARTICLE 370 (former special status of J&K) □

HIGH

Advanced · PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □ · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Article	State(s)	Core special provision
□ 371	**Maharashtra & Gujarat**	Governor's special responsibility for **development boards** (Vidarbha, Marathwada / Saurashtra, Kutch)
□ 371-A	**Nagaland**	Parliament laws on **Naga customary law, land, civil/criminal justice** don't apply unless the Assembly decides; Governor's special law-&-order role
□ 371-B	**Assam**	Committee of Assembly for **Tribal Areas**
□ 371-C	**Manipur**	Committee of Assembly for **Hill Areas**; Governor's special responsibility
□ 371-D/E	**Andhra Pradesh & Telangana / Andhra Pradesh**	371D: equitable public employment/education through Presidential orders; the former AP Administrative Tribunal was abolished in 2020. 371E enables Parliament to establish a Central University in Andhra Pradesh.
□ 371-F	**Sikkim**	Detailed integration settlement: representation, existing-law/court continuity, one Lok Sabha seat, Assembly ≥30 and Governor responsibility for peace/equitable advancement (36th Amdt 1975)
□ 371-G	**Mizoram**	Parliament laws on **Mizo customary law, land, justice** don't apply unless the Assembly decides; Assembly ≥40
□ 371-H	**Arunachal Pradesh**	Governor's special law-&-order responsibility; Assembly ≥30

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □

HIGH

Advanced · PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □ · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Article	State(s)	Core special provision
□ 371-I	Goa	Assembly ≥30
□ 371-J	Karnataka	Presidential order may assign Governor responsibility for a development board, equitable funds/opportunity and proportionate local seats/posts for the constitutionally named Hyderabad-Karnataka region, now Kalyana Karnataka (98th Amdt 2012)

MAINS ANGLE

STUDY LINK
Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □

HIGH

Advanced · PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □

GS-II Indian Polity

INTRO & ORIGIN

□ **Part XXI, Art 371–371-J** — special provisions for **Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka.** Aim: protect tribal/cultural interests, backward regions, or disturbed law & order. The present State-specific family reflects successive constitutional amendments and reorganisation; quote the amendment attached to each lettered Article rather than saying every clause had one common origin.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □□ **Note:** Art 371-A (Nagaland) & 371-G (Mizoram) give the **strongest protection** — Union laws on customary law/land need Assembly consent. These are distinct from the **Sixth Schedule** (tribal autonomous councils in Assam, Meghalaya, Tripura, Mizoram) and **Fifth Schedule** (scheduled areas).

MUST-KNOW FACTS

1. Part XXI, Art 371–371-J — special provisions for **Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, Karnataka.** Aim: protect tribal/cultural interests, backward regions, or disturbed law & order. The present State-specific family reflects successive constitutional amendments and reorganisation; quote the amendment attached to each lettered Article rather than saying every clause had one common origin.

MAINS ANGLE

STUDY LINK
Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → PART B — ARTICLE 371 to 371-J: SPECIAL PROVISIONS FOR 12 STATES □

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

inoperative (2019); SC upheld this (2023).

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS: RECALL MAP

UPSC Traps

V

Dimension 1 inoperative (2019); SC upheld this (2023).	**Dimension 2** Mizoram, 371-H Arunachal); Assam = 371-B.
Dimension 3 Assembly consents.	

STATIC THEORY

- Mizoram, 371-H Arunachal); Assam = 371-B.

- Assembly consents**.

UPSC TRAPS

WRONG: Art 370 has been fully deleted from the Constitution

CORRECT: it still **exists in text** but was rendered

WRONG: Special provisions (Art 371) are in Part III

CORRECT: they are in **Part XXI** ("Temporary, Transitional & Special").

WRONG: Art 371 covers all NE states via one clause

CORRECT: separate articles (371-A Nagaland, 371-C Manipur, 371-G

WRONG: 371-A/371-G let Parliament override state customary law

CORRECT: those Union laws **don't apply unless the state

WRONG: 371-D applies only to Andhra Pradesh

CORRECT: extended to Telangana (2014).

WRONG: Sixth Schedule = Art 371

CORRECT: different mechanisms (Sixth Schedule = autonomous district councils).

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ □ **J&K statehood restoration** remains an unfulfilled Union assurance after the 2024 Assembly elections; do not describe it as already enacted or as subject to a deadline imposed by the 2023 judgment. □ □□ **Ladakh's demand for Sixth Schedule status / statehood** — recurring protests (Leh/Kargil).

INTRO & ORIGIN

□ □□ Debates on extending special protections (e.g. Art 371-type safeguards) to other regions.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Was the abrogation of Article 370 a step towards genuine integration or an erosion of federal/consent principles? Critically examine in light of the 2023 SC verdict. Asymmetric federalism (Art 371 provisions): how does it accommodate diversity without threatening unity? Ladakh's Sixth Schedule demand — balancing development, ecology and tribal autonomy.

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Mains angles

HIGH

Advanced · Verified PYQ application

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Verified PYQ application.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ ***2025 GS-II Q4 (10 marks, 150 words):*** *"Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir." Route: UT legislature under the 2019 Act → elected law-making and financial/ accountability functions → exclusions and Union/LG override architecture → compare with a State legislature without treating J&K as constitutionally identical to Delhi.*

STUDY LINK

Special Provisions for Some States (Articles 370–371-J, Part XXI) — ADVANCED / COMPLETE → Verified PYQ application

End of Register Notes - UPSC Agent / Copilot CLI